



POLICE DEPARTMENT

February 17, 2026

-----X
In the Matter of the Charges and Specifications
- against -

Police Officer Kelvin Winters
Tax Registry No. 961582
49 Precinct Detective Squad

Case No.
C-030974

Police Officer Michael Milone
Tax Registry No. 958935
Bronx Child Abuse Squad

Case No.
C-030975

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

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To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
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CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-030974

1. Police Officer Kelvin Winters, on or about January 27, 2023, at approximately 0033 hours, while assigned to the 40th Precinct and on duty, in the vicinity of the 145th Street Bridge, between the Bronx and Manhattan, Bronx County, wrongfully used force, in that Officer Winters drove the police vehicle into Complainant's path without police necessity, which caused Complainant to make impact with the vehicle with force and caused injury to his leg.

P.G. 221-02, Page 2, Paragraphs 11 & 12

USE OF FORCE

P.G. 221-01

FORCE GUIDELINES

P.G. 221-15

VEHICLE PURSUITS

Disciplinary Case No. C-030975

1. Police Officer Michael Milone, on or about January 27, 2023, at approximately 0033 hours, while assigned to the 40th Precinct and on duty, in the vicinity of the 145th Street Bridge, between the Bronx and Manhattan, Bronx County, wrongfully used force, in that Officer Milone hit Complainant against a police vehicle, by opening the passenger door, which Complainant slammed into with force, causing injury to his leg without police necessity.

P.G. 221-02, Page 2, Paragraphs 11 & 12

USE OF FORCE

P.G. 221-01

FORCE GUIDELINES

2. Police Officer Michael Milone, on or about January 27, 2023, at approximately 0033 hours, while assigned to the 40th Precinct and on duty, in the vicinity of the 145th Street Bridge, between the Bronx and Manhattan, Bronx County, wrongfully used force, in that Officer Milone repeatedly punched Complainant about his face, without police necessity.

P.G. 221-02, Page 2, Paragraphs 11 & 12

USE OF FORCE

P.G. 221-01

FORCE GUIDELINES

3. Police Officer Michael Milone, on or about January 27, 2023, at approximately 0033 hours, while assigned to the 40th Precinct and on duty, in the vicinity of the 145th Street Bridge, between the Bronx and Manhattan, Bronx County, was discourteous, in that Officer Milone said to Complainant, in sum and substance: "Come on, motherfucker," without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on January 5, 2026. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement of Complainant¹, as well as his medical records and Body-Worn Camera footage of the incident. Respondents each testified on their own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Winters Not Guilty and Respondent Milone Not Guilty of Specification 1, but Guilty of Specifications 2 and 3. With regard to Respondent Milone, I recommend a penalty of the forfeiture of twenty (20) vacation days.

ANALYSIS

The following facts are undisputed. On January 27, 2023, Respondents Milone and Winters, were in an unmarked RMP, driven by Respondent Winters, when they observed Complainant riding on an unregistered motorcycle. They decided to effectuate a traffic stop, however, immediately after Respondents activated their lights and sirens, Complainant accelerated and attempted to evade the police. Respondents continued to pursue Complainant, but he did not immediately stop. According to his own admission, Complainant knew the officers were trying to stop him but instead of stopping, he accelerated the speed of his bike and went through steady red traffic lights to elude the police.

As Complainant was crossing the 145th Street Bridge between the Bronx and Manhattan, he began to slow his speed. Upon seeing Complainant slow down, Respondents also decelerated

¹ Complainant's identity is known to the Tribunal but intentionally omitted because he did not testify at trial.

and stopped the RMP ahead of Complainant. Respondent Milone opened the door of the RMP and Complainant drove directly into the door.

When Respondent Milone exited the vehicle and approached Complainant, he punched Complainant multiple times and took him down to the ground. While Complainant was on the ground and being placed in handcuffs, Respondent Milone began yelling and cursing at Complainant. Ultimately, Complainant was taken into custody and removed to the 40 Precinct. Later that day, Complainant was taken to Lincoln Hospital where he was diagnosed and treated for a “closed fracture of the proximal end of his left tibia.” (CCRB Ex. 6 at 11)

The issues in this case are: 1) whether Respondents Winter and Milone used improper non-deadly force to stop Complainant during a traffic stop; 2) whether Respondent Milone used excessive force when he punched Complainant multiple times during the apprehension; and 3) whether Respondent Milone’s use of profanity directed at Complainant constitutes discourtesy. This Tribunal is not persuaded that Respondents Winters and Milone wrongfully used force by striking Complainant on the motorcycle. Conversely, however, this Tribunal finds that Respondent Milone’s actions of striking Complainant in the face multiple times and using discourteous language constitutes misconduct.

Upon the advice of counsel, Complainant, who has a pending civil lawsuit in connection with this matter, did not appear to testify at trial. Instead, the CCRB introduced into evidence a recording of an interview conducted with Complainant on September 6, 2023, along with the accompanying transcript. (CCRB Exs. 4 and 4A) It is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity

to cross examine, and the court can observe witness demeanor. In the absence of live testimony from the complainant here, this Tribunal carefully considered his prior statement, in conjunction with the other evidence presented at trial.

During his CCRB interview, which took place over seven months after the incident, Complainant detailed that on January 27, 2023, at approximately 12:35 a.m., in the vicinity of Exterior Street and East 149th Street, he was making a DoorDash delivery. He recalled stopping at a red light when he heard a horn honk from a black car. He did not immediately recognize the occupants as police officers until he saw their uniforms. Complainant acknowledged that even after he realized they were police officers, he did not stop his motorcycle. (CCRB Ex. 4A at 4)

Complainant testified that he continued driving for approximately three blocks further, during which time he accelerated “to a considerable speed” and ran a red light. He stated that he “went against traffic on the left side” to evade the officers. At one point, officers attempted to block him but were cut off by another vehicle, allowing him to continue accelerating. Complainant recalled that the entire incident lasted no longer than “three minutes.” Complainant recounted that while the officers were initially close behind him, he gained a significant lead because he was riding a racing motorcycle. He acknowledged that his motorcycle was unregistered and that he did not have the proper paperwork, as he bought the bike in the Dominican Republic and only had “the title of ownership.” (*Id.* at 4, 5, 12, 27, 34, 47, 95)

Complainant admitted that he ignored the police because “[he] spent everything buying the motorcycle” and planned to get the necessary legal paperwork when he could afford it. He claimed that he was worried that if the motorcycle were taken, he would have nothing and would be unable to work. At the time of the incident, he detailed that he, his wife, and his children were living in a shelter. (*Id.* at 7, 12)

Complainant testified that shortly after fleeing, he thought it would be prudent to stop to avoid future problems, explaining that both he and the officers “work in the same area.” He recalled pulling over, turning off the motorcycle, and waiting for the officers to catch up. He expected what he described as “a normal procedure,” such as being ticketed or possibly having the motorcycle taken. Instead, Complainant testified that the officers were “coming at [me] at high speed.” He described that while he was stopped, “they went a little further ahead and then opened the car door.” He further elaborated that the officer in the passenger seat opened the door, struck him with the right side of the car door, pinning him against the guardrails of the bridge. (*Id.* at 4-5, 55)

Complainant asserted that prior to the officers exiting their vehicle to apprehend him, he was seated on the motorcycle with his hands on the handlebars. He testified that the officer in the passenger seat—the same officer who opened the door that struck him—was the first to exit the vehicle and approached him aggressively. Complainant recalled feeling the door hit him below his left knee and testified that this officer repeatedly hit and punched him in the face and about the body. When he attempted to stand up to “defend himself,” which he described as covering his face, he “realized [his] leg wasn’t working.” (*Id.* at 6, 48, 59)

Complainant testified that after being taken to the ground, he repeatedly pleaded with the officers that his leg was broken, but they ignored him. He was then handcuffed and placed into the police vehicle. After a short period of time at the precinct, Complainant was transported by ambulance to the hospital, where he underwent extensive surgery to his “shin bone area.” Several days later, he underwent an additional surgery in which “they put plates in.” (*Id.* at 6-8, 10)

Respondent Milone testified that on the date of the incident, he was assigned to the 40 Precinct Conditions Team. The team consisted of himself, Officers Taveras and Malik and Respondent Winters. Respondent Milone recalled that Officer Winters was the operator of the RMP, he was seated in the recorder position and Officers Taveras and Malik were seated in the rear. As the team approached Morris Avenue, Respondent observed a motorcycle with no license plate affixed to it. Based upon his experience on the conditions team, Respondent believed that the motorcycle was unregistered and could be stolen, so they decided to conduct a vehicle stop. (Tr. 25-28)

Respondent Milone asserted that the RMP's lights were activated and Respondent Winters honked the horn to alert Complainant that he was being stopped. Complainant then "turned the throttle on his motorcycle" and accelerated westbound on East 149th Street. (Tr. 28) Respondent Milone observed Complainant proceed to run through steady red lights and drive on the opposite side of the street at a high rate of speed. Respondent Milone went over the RMP's loudspeaker and ordered Complainant to "pull over," but he did not. Respondent Milone estimated that while they were following Complainant, he was approximately seven or eight car lengths away from their RMP and traveling at a rate of speed higher than 40 MPH. (Tr. 28-30)

As they approached the 145th Street Bridge, Respondent Milone recalled that Complainant decelerated and moved over toward the right shoulder of the road. At that point, Respondent Milone believed that "he was just going to surrender, stop the motorcycle give up because it seemed a little reckless and he was about to stop." The officers then passed Complainant and stopped the RMP. According to Respondent Milone, he opened the door of the RMP and observed Complainant accelerate and attempt to drive his motorcycle in between the

stationary RMP and the concrete median. Complainant then collided with the inside of the RMP's front passenger door. (Tr. 31-33)

Respondent Milone claimed that based upon Complainant's actions and "evasion maneuvers," he believed Complainant was trying to flee for something "very serious." Respondent Milone further speculated that Complainant might have had "something on him" such as narcotics or a firearm, or that there was an active warrant for his arrest. Respondent Milone testified that these assumptions affected the way he approached Complainant because Respondent believed he was a "flight risk until he was in cuffs." (Tr. 34)

According to Respondent Milone, Complainant immediately took off his helmet as he was approaching. Respondent asserted that he thought Complainant was going to use the helmet as a weapon to hit him or attempt to flee on foot, so he struck Complainant in the face area and then pulled him off the motorcycle. Respondent further explained that the purpose of the hand strikes was "to overcome the threat of being hit with the helmet." (Tr. 35) Respondent Milone then instructed Complainant to get off the motorcycle and admittedly used profane language, both in English and Spanish, because it was a "very charged situation." Respondent avowed that he was "using every tool in my toolbox just to get this guy apprehended and cuffed up and get the situation back to control." (Tr. 36)

Respondent Milone testified that once Complainant was in custody and being transported by other officers, he rode Complainant's motorcycle back to the precinct. An ambulance was called soon thereafter to bring Complainant to Lincoln Hospital for medical attention related to injuries he sustained. (Tr. 36)

Respondent Winters provided a substantially similar version of events to that of his partner, Respondent Milone, and provided additional details regarding the pursuit. Respondent

Winters testified that on the date of the incident he was the operator of the unmarked RMP that he and his team were driving in. When he observed Complainant on a motorcycle without a license plate, they decided to effectuate a vehicle stop. Respondent Winters reiterated that he activated the lights and beeped the horn to alert Complainant that he was being pulled over. When Complainant did not immediately stop, Respondent Winters asserted that Respondent Milone went over the loudspeaker and instructed him to pull over. Respondent Winters further recalled that at one point, they were “side by side to him, he [Complainant] was parallel to us. [They] did tell him to pull over again and he proceeded to speed past us and cut in front of [them] and proceed to drive further up.” (Tr. 70-71)

Respondent Winters described the pursuit that ensued. He testified that after Complainant accelerated past their RMP, “He did go through a few red lights. He did drive on the wrong side of the street as well. Going over the solid double yellow lines so he disobeyed pavement markings.” Complainant continued his attempt to evade police by driving through steady red lights down the Grand Concourse and even swerved past an ambulance along the path. (Tr. 72)

As they approached the 145th Street Bridge, Respondent Winters recollected that Complainant drove the motorcycle toward the right divider and decelerated, giving Respondent Winters the impression that Complainant was going to stop. Respondent Winters proceeded to drive past him and “angled the car to the right as well so [he] could stop and [his] team could get out of the car to apprehend him.” According to Respondent Winters, his intent in maneuvering the RMP in this manner was to allow his team to get out of the car safely and double back to apprehend Complainant. (Tr. 75)

Respondent Winters testified that once he stopped the RMP, he noticed Complainant by the front passenger side door of the RMP. Respondent Winters, however, did not see how

Complainant collided with the RMP because he was driving and the last person to exit the RMP. Respondent Winters remembered that by the time he got out of the car, Complainant was being placed in custody so Respondent Winters assisted with the apprehension. (Tr. 76-77)

Respondent Winters claimed that he did not immediately realize that Complainant was injured. Initially, he did not see the impact and Complainant did not speak English. Respondent Winters later learned, as he was transporting Complainant back to the precinct, that he needed medical attention, so Respondent Winters did radio for EMS to meet them at the precinct. Respondent Winters reiterated that he did not intentionally position the RMP in a manner that would cause Complainant to strike it and that his only concern was to ensure his partners exited the RMP safely. (Tr. 77-78, 92)

Disciplinary Case No. C-030974

Specification 1 alleges that Respondent Winters wrongfully used force by driving the police vehicle into Complainant's path, causing Complainant to collide with the RMP and causing injury to his leg. It is the position of the CCRB that Respondent intentionally placed the RMP in Complainant's path to cause him to stop. Respondent, in contrast, insists that he did not deliberately place the RMP in a position to be struck by the motorcycle, but rather moved the RMP to the side of the road to stop and let his partners out of the car to take police action.

None of the BWC footage received in evidence at this trial clearly captures what happened outside of the RMP prior to the collision. However, Respondent Milone's BWC, does show that as the RMP drives onto the bridge, the officers pass Complainant, who is still riding his motorcycle, and then stop a few seconds later. As Respondent Milone opens the passenger side door, Complainant appears directly alongside him on his motorcycle. Respondents and the two other officers exit the RMP and place Complainant in custody. (CCRB Ex. 2 at 00:41-00:50)

During his CCRB interview, Complainant asserted that his motorcycle was stationary on the bridge while he was waiting for the police to catch up with him and the police car deliberately pushed him into the guardrail (CCRB Ex. 4A at 40). That version of events, however, is incongruous to what is depicted on video. This Tribunal is therefore not persuaded by the reliability of Complainant's hearsay narrative. Complainant did not appear at trial, and so the defense did not have the chance to question him about the details of how precisely his motorcycle collided with the RMP. Additionally, Complainant did not have to answer questions about whether he had an interest in fabricating his account to shift responsibility for what occurred onto Respondents, in order to support the claims, he may have made in the lawsuit he filed.

Respondent Winters, meanwhile, testified in a detailed, credible manner about what transpired. He maintained that he did not intentionally position the RMP in a manner to be struck by the motorcycle. Moreover, the video evidence corroborates Respondent Winter's account that after he passed Complainant on the bridge, he pulled over to the side to let his partners out of the car to effectuate the car stop. If, in fact, Complainant stopped his motorcycle like he claimed he did, he would not have collided with the front passenger door of the RMP.

The CCRB has the burden of proving, by a preponderance of the credible evidence, that Respondent Winters wrongfully used force by intentionally placing the RMP in Complainant's path in order to cause him to stop. Based on the totality of the evidence presented, including the hearsay account provided by the complainant, I am not persuaded that Respondent Winters intentionally collided with the complainant. Although it is clear that a motor vehicle accident occurred and that Complainant sustained substantial physical injuries as a result (CCRB Exs. 5 and 6), not all such accidents rise to the level of misconduct. Here, there was insufficient proof to

establish that Respondent Winters wrongfully used force against the complainant. Accordingly, I find Respondent Winters Not Guilty of Specification 1.

Disciplinary Case No. C-030975

Specification 1: Use of Force

Respondent Milone is charged with wrongful use of force, in that, according to CCRB, he hit Complainant against a police vehicle, by opening the passenger door, causing Complainant to injure himself. Using the same rationale as stated in the previous section, this Tribunal is not persuaded that Respondent Milone opened the door of the RMP with the intent to cause the collision or hurt Complainant. Respondent Milone credibly testified that once they were on the bridge, he believed Complainant was slowing down to stop. As Respondent Winters pulled over to the right, Respondent Milone opened the RMP's front passenger side door to exit the vehicle. This Tribunal finds that it was highly unlikely that Respondent Milone knew or should have known that Complainant was going to continue driving and collide with the open door, especially given the fact that Complainant was behind the RMP when it stopped on the bridge.

The CCRB has failed to meet its burden to demonstrate that Respondent Milone wrongfully used force against Complainant when he opened the door. Accordingly, I find Respondent Milone Not Guilty of Specification 1.

Specification 2: Use of Force – Punching Complainant

Respondent Milone is charged with wrongfully using force against Complainant and striking him without police necessity. Respondent admits that he used "hand strikes" to Complainant's face but claims he did so because he was concerned that Complainant was going to use the helmet as a weapon. (Tr. 35-36) Respondent Milone further asserted that based upon Complainant's "evasion maneuvers" and trying to squeeze his motorcycle between the RMP and

divider to flee, he felt Complainant was a “flight or fight risk.” (Tr. 34) Upon review of the record and video evidence, this Tribunal finds that the CCRB proved by a preponderance of the evidence that Respondent Milone engaged in actionable misconduct when he struck Complainant without police necessity.

Patrol Guide section 221-01 states:

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. All members of the service at a police incident must use reasonable force, employ less lethal alternatives and prioritize de-escalation, whenever possible. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy.

Patrol Guide procedure 221-02 further states: “When a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01,” and “[a]pply no more than the reasonable force necessary to gain control.”

When asked during cross-examination whether Complainant was “resisting” when Respondent Milone stepped out of the RMP, Respondent Milone replied “there was a little bit of back and forth.” He further added that he used force upon exiting the vehicle due to the “threat of the helmet.” (Tr. 51) The recordings, however, do not fully support Respondent Milone’s version of events. The video evidence shows that as soon as Respondent Milone exits the RMP, Complainant is next to him, removing his helmet while still straddling the motorcycle. Even though there are no signs of resistance or attempts to flee by Complainant, Respondent Milone immediately begins to deliver multiple hand strikes to his face. Within seconds, all the officers in the RMP surround Complainant and are attempting to remove him from the motorcycle and bring him to the ground. Complainant can be heard stating: “Sorry, sorry. Speak Spanish.” When

Respondent Milone instructs Complainant in Spanish to “shut up and don’t move,” Complainant replies ok and immediately complies. (CCRB Ex. 1 at 00:50-01:00; CCRB Ex. 2 at 00:45-01:11)

Based upon a review of Respondent Milone’s testimony and a careful review of the video evidence, I find that Respondent’s use of force was more likely than not excessive under the totality of the circumstances. While this Tribunal agrees with Respondent Milone’s initial assessment that Complainant was a flight risk when being pursued, Complainant did not appear to be resisting or attempting to flee at the time the officers were placing him in custody. Respondent Milone immediately delivered a barrage of force upon exiting the RMP, punching Complainant in the face several times, without first making attempts to gain control of Complainant by handcuffing him and effectuating an arrest. The rushed and erratic movements of Respondent Milone were not those of a reasonable officer with Respondent’s level of training and experience.

At trial, Respondent sought to excuse his actions by claiming that he felt threatened when Complainant removed his helmet because he might use it as a weapon based upon his prior experience. However, I am not persuaded that Complainant’s action of removing his helmet alone, constitutes a threat. The Tribunal acknowledges that officer responses involving attempts to flee are often chaotic and dangerous circumstances. Here, however, Respondent’s use of force was gratuitous and extended beyond what a reasonable officer would employ under similar circumstances.

Accordingly, I find Respondent Milone’s use of force unjustified and without police necessity. I therefore find Respondent Milone Guilty of Specification 2.

Specification 3: Discourtesy

Respondent Milone is charged with using discourteous language in addressing Complainant. In this case, Respondent Milone admitted saying “shut the fuck up,” “don’t move, asshole,” and “come on, motherfucker” to Complainant in Spanish at the time of the apprehension. Indeed, each of these statements are also captured on CCRB’s Exhibit 2 from 01:00 to 1:18. Respondent Milone testified that the language he used was necessary and appropriate in order to achieve the desired result of getting Complainant, who attempted to evade police, in police custody.

In describing his confrontation with Complainant, Respondent Milone asserted that it was “a little bit of a charged situation,” and he was aggravated by the events that just transpired when he made these statements to Complainant. He further claimed that he was “using everything in [his] toolbox to get everything back to an even plane. If it meant us[ing] coarse language, [he] was using everything in [his] toolbox.” (Tr. 57-58) Respondent Milone acknowledged, however, that when he made those remarks, Complainant was not resisting arrest, but Respondent Milone was giving him orders not to move anyway. Respondent Milone maintained he used coarse language in order to gain Complainant’s compliance.

In reviewing the BWC footage received in evidence, it appears that at the time Respondent Milone began communicating with Complainant in Spanish and used profane language, Complainant was already on the ground and being cuffed. It did not appear to this Tribunal that Complainant was being noncompliant. In fact, it appeared that Complainant acquiesced to their authority. I therefore cannot credit Respondent’s version of events as it relates to his use of course language.

This Tribunal has long held that the use of vulgar language by police officers which would otherwise be inappropriate for an ordinary police-citizen encounter is viewed differently during a heated physical confrontation. However, the factors that would customarily justify such actions were not present in this case. Based upon the evidence adduced at trial, I find Respondent Milone's use of profanity was more likely the result of his frustration with the situation rather than a verbal "tool" to obtain Complainant's compliance. Under these circumstances, Respondent Milone's statements were inappropriate, gratuitous and unprofessional. I therefore find Respondent Milone Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent Milone's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel records that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent Milone, who was appointed to the Department on July 8, 2015, has been found Guilty of Specification 2, wrongful use of force (punching Complainant) and Specification 3, discourtesy. CCRB recommended the presumptive penalty of 10 vacation days plus 10 suspension days for the wrongful use of non-deadly force with injury (for Specification 1), the presumptive penalty of 10 vacation days for the wrongful use of force with no injury (for Specification 2) and the presumptive penalty of 5 days for discourtesy (for Specification 3) to run consecutive, for a total of 25 vacation days plus 10 suspension days for all three

specifications charged. As this Tribunal only found Respondent Milone Guilty of two specifications, a lower penalty is warranted.

An appropriate penalty needs to address two areas of concern involving Respondent's conduct in this matter: the overall unprofessional manner in which he addressed Complainant and his use of force against Complainant by punching him in the face multiple times while taking him into custody.

With respect to the force used by Respondent Milone against Complainant (Specification 2), this Tribunal recommends the forfeiture of fifteen (15) vacation days. Although I would ordinarily agree with CCRB's recommendation of the presumptive penalty of ten (10) vacation days for the non-deadly use of physical force where there is no injury, given Respondent's disciplinary history, an increased penalty for the current violation is appropriate pursuant to the principle of progressive discipline. This Tribunal notes that in 2020, Respondent Milone negotiated the forfeiture of fifteen (15) vacation days for the wrongful use of force, for head-butting a prisoner. *See Disciplinary Case No. 2020-21696* [October 1, 2020]²

Although Complainant was initially non-compliant during the attempted vehicle stop and led the officers on a wild goose chase, Respondent striking Complainant multiple times at the time of the apprehension constituted an unreasonable use of force. Respondent's actions were an impulsive overreaction to the situation, for which there needs to be appropriate accountability. This Tribunal opines that the penalty of fifteen (15) vacation days will fairly and adequately address the wrongful use of force under the specific circumstances of this case.

² The Disciplinary Guidelines ("Matrix") state that "a new act of misconduct that is the same as a prior act of misconduct or carries a presumptive penalty that is equal to or greater than the presumptive penalty of a prior act of misconduct, may result in an increase in the disciplinary penalty for the current violation through the application of progressive discipline." further provides that: "The primary principle of progressive discipline is that repeated acts of the same misconduct should be subject to greater penalties." Any time limitations set forth in the Matrix do not apply to force cases. (Matrix at pp. 11-12)

Regarding Respondent's discourtesy (Specification 3), it was evident that Respondent's frustration with the situation unduly affected his behavior toward Complainant. From the start of the apprehension, Respondent was disproportionately aggressive and impatient in how he addressed Complainant, including his harsh tone and gratuitous use of profanity. The Matrix provides for a presumptive penalty of five (5) vacation days for discourtesy. There were no mitigating or aggravating factors presented that justify a departure from the presumptive penalty, I therefore recommend the forfeiture of five (5) vacation days for this misconduct.

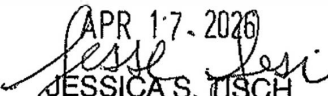
Taking into account the totality of the facts and circumstances in this matter, I recommend that Respondent forfeit fifteen (15) vacation days for the use of force and five (5) vacation days for the discourtesy, with those penalties to run consecutively, bringing the total to twenty (20) vacation days, a significant forfeiture that will hopefully serve as a deterrent to future misconduct.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

APR 17 2026

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER MICHAEL MILONE
TAX REGISTRY NO. 958935
DISCIPLINARY CASE NO. C-030975

Respondent was appointed to the Department on July 8, 2015. On his three most recent performance evaluations, he received a 3.5 rating of “Highly Competent/Competent” in 2024, and was rated “Exceeds Expectations” for 2021 and 2022. He has been awarded two medals for Meritorious Police Duty and eleven medals for Excellent Police Duty.

In 2020, Respondent forfeited fifteen vacation days after pleading Guilty to wrongfully using force, in that he head-butted a prisoner without police necessity. He was previously placed on Level 1 Discipline Monitoring from April 2021 to April 2022.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials